CHARMLINE MARKETING (PVT) LTD
versus
TONDERAI CHATIKOBO
and
CHARLES DHEDHEYA
and
TICHAONA MUKONO
and
ETHEL MUTEKEDZA
and
EDWIN TSIKAI
and
LAWRENCE SIMBARASHE WATCH
and
CITY OF HARARE

HIGH COURT OF ZMBABWE
MANYANGADZE J
HARARE, 10, 13, 19 February & 12 November 2025

Civil Trial

T. Tanyanyiwa, for the plaintiff
C. Tafirei, for the 1st - 6th, 8th and 9th defendants
No appearance for the 7th defendant

MANYANGADZE J: The plaintiff issued summons against the defendants, in which it claims for;

a) "An order declaring the agreements of sale between the 1st to 6th Defendants and the 7th Defendant null and void because they were in respect of properties belonging to the Plaintiff and the 7th Defendant had no right to sell them to the 1st to 6th Defendants.
b) An order declaring the Plaintiff to be the legitimate owner of Stand Numbers 20257-20280, Crowborough Township, Harare.
c) An order compelling the Defendants and all those claiming the right of occupation through them to vacate from Stand Numbers 20257- 20280, Crowborough Township, Harare.
d) An order compelling the Defendants to remove any structures erected by them on Stand Numbers 20257 20280, Crowborough Township, Harare within thirty (30) days.
e) Failing compliance by the Defendants to execute the order in paragraphs (c) and (d) above, the Sheriff for Zimbabwe is authorised to evict, remove and/or eject the Defendants and all those claiming the right of occupation through them from Stand Numbers 20257-20280, Crowborough Township, Harare and to procure the demolition and removal of any structures built thereon by the Defendants.
f) Costs of suit."

After the close of the plaintiff's case, the defendants filed an application for absolution from the instance. In the application, the defendants are cited as applicants and the plaintiff as the respondent. For convenience, clarity and consistency with the record, I shall continue to refer to the parties as plaintiff and defendants.

The plaintiff's Director was the sole witness for the plaintiff. It is necessary to give a summary of her evidence.

The witness, Doreen Makande, told the court that on 7 September 2016 her company was allocated 24 residential stands by the City of Harare, the 7th defendant in this matter. The stands were numbered 20 257 – 20 280.

After the plaintiff fulfilled all the conditions specified in the allocation letter, it was issued with a Certificate of Compliance. The plaintiff could now apply for Title Deeds for the stands in question. The conditions included roads construction, sewer and water reticulation and payment for the intrinsic value of the land.

The witness further stated that after obtaining the Certificate of Compliance, she took names of plaintiff's beneficiaries to Kuwadzana District Office, for allocation of their stands. The beneficiaries are employees of the plaintiff.

The witness went on to state that when they visited the site, they noticed that some people had been allocated their stands. These people were not on the plaintiff's list of beneficiaries. They were unknown to the plaintiff.

The witness denied the existence of any relationship with a company called Angle Capital, cited in the summons as the eighth defendant. She denied the plaintiff's involvement in any dealings with the eighth defendant in relation to the stands. The witness asserted that she directly dealt with the seventh defendant on behalf of the plaintiff.

Under prolonged cross-examination by counsel for the defendants, the witness maintained that she was allocated the plaintiff's stands by the seventh defendant. She did not have any arrangement with the 8th defendant.

It is against the background of this evidence that the defendants have applied for absolution from the instance.

A defendant is absolved from the instance at this stage i.e. close of the plaintiff's case, if the plaintiff fails to adduce evidence upon which a court, applying its mind reasonably, might give judgment for the plaintiff.

The test has been enunciated in numerous cases. The court has been referred to some of the leading cases. These include *Gascoyne* v *Paul & Hunter* 1917 TPD170 @ 173, *Supreme Service Station* v *Fex and Goodridge* 1971 (1) RLR 1, *United Air Charters (Pvt) Ltd* v *Jarman* 1994 (2) ZLR 341 (S), *Chiswanda* v *OK Zimbabwe Limited* SC 84/20.

In *Gascoyne* v *Paul & Hunter, supra,* at p 173, the court stated:

> "At the close of the plaintiff's case, therefore, the question which arises for consideration of the court is, is there evidence upon which a reasonable man might find for the plaintiff? And if the defendant does not call any evidence, but closes his case immediately, the question for the court would be, is there such evidence upon which the court ought to give judgment in favour of the plaintiff"

In *Chiswanda* v *OK Zimbabwe, supra*, the principle was clarified in the following terms:

> "Crucially the test to be applied is not whether or not the evidence for the plaintiff establishes what would finally be required to be established to obtain judgement. The evidence required at this stage is whether or not the plaintiff has made out a prima facie case to prove the claim... This implies that a plaintiff has to make out a *prima facie* case-in the sense that there is evidence relating to all elements of the claim - to survive absolution..."

Turning to the instant case, the evidence summarised above shows that the plaintiff was allocated the stands in contention in 2016. It also shows that the plaintiff was issued with a Certificate of Compliance, a crucial document that shows that the plaintiff has been on the ground and has effected certain required developments. It is on that basis that one then applies for Title Deeds, a stage which the plaintiff has reached.

Crucially, for the purpose of escaping absolution, the testimony of the plaintiff's witness is substantiated by documentary evidence. These documents include:

(i) The offer letter of 16 September 2016

(ii) The Certificate of Compliance of 18 February 2018

(iii) Proof of payment of intrinsic value, 20 February 2018

(iv) Confirmation of allocation position, 10 September 2021

All this, in my view, is sufficient material that constitutes a *prima facie* case as envisaged in the authorities cited.

The defendants have failed to demonstrate that such evidence falls short of the requisite *prima facie* case. They have failed to demonstrate that they are entitled to an order of absolution from the instance.

In the circumstances, it is ordered that:

1. The application for absolution from the instance be and is hereby dismissed.
2. Costs shall be in the cause.

MANYANGADZE J: …….

Tanyanyiwa & Associates, plaintiff's legal practitioners
Tafirei & Company, defendants' legal practitioners